

ORDINANCE NO. 3957

ENTITLED: “AN ORDINANCE AMENDING, REPEALING, AND CREATING CERTAIN SECTIONS OF CHAPTER 10.52, STOPPING, STANDING AND PARKING GENERALLY, OF TITLE 10, VEHICLES AND TRAFFIC, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING, RELATING TO THE PARKING OF MOTOR VEHICLES, RECREATIONAL VEHICLES AND TRAILERS.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 10.52.020, Prohibited in specified places, of Chapter 10.52, Stopping, Standing and Parking Generally, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming, is hereby amended as follows:

Section 10.52.020 Prohibited in specified places.

Except when necessary to avoid conflict with other traffic, or in compliance with law or the directions of a police officer or other official traffic-control device, no person shall:

A. Stop, stand or park a vehicle:

1. Which is a tractor unit with ten (10) or more wheels and/or a fifth wheel, with or without a semi-trailer, upon any street or alley in the city, except when such vehicles are in the process of loading or unloading at the site of origin or delivery of shipments; recreational campers and vans may park for the time limits posted.

~~Any person found guilty of violating subsection (A)(1) of this section shall be fined not less than one hundred dollars (\$100.00).~~ ANY PERSON FOUND GUILTY OF VIOLATING ANY OF THE PROVISIONS OF THIS CHAPTER MAY BE PUNISHED IN ACCORDANCE WITH THE GENERAL PENALTY PROVISIONS OF THE CHEYENNE CITY CODE.

2. On the roadway side of any vehicle stopped or parked at the edge or curb of the street, except that commercial delivery vehicles may double park on any street parallel with the curb, with hazard lights flashing, which has two lanes of traffic moving in the same direction, for the express purpose of, and while actually engaged in, loading or unloading; provided, that no truck so parked shall remain double parked for longer than thirty (30) minutes at any one delivery point; also provided, that on the streets between Pioneer and Warren Avenues, and 16th and 25th Streets, inclusive, where these aforementioned streets have two lanes of traffic moving in the same direction, the double parking shall not be permitted between the hours of seven-thirty a.m. to eight-thirty a.m. and eleven-thirty a.m. to one-thirty p.m. and four-thirty p.m. to five-thirty p.m. It shall be a violation of this section to double park at any time if space is available to park directly adjacent to and parallel with the curb when the delivery vehicle stops. All delivery vehicles which have no apparent signs or indications demonstrating the vehicle to be a commercial vehicle must place a sign in a conspicuous place stating that the vehicle is a delivery vehicle and the name of the business for which deliveries are being made.

3. (This paragraph remains unchanged).

4. On any railroad tracks, NOR WITHIN FIFTY (50) FEET OF ANY RAILROAD CROSSING AT GRADE.

B. Stand or park a vehicle OR TRAILER, whether occupied or not:

1. Within ~~six~~ FIFTEEN (15) feet of a fire hydrant,

2. (This paragraph remains unchanged.)

3. ~~Within thirty (30) feet upon the approach to any flashing signal, stop sign, yield sign or traffic control signal located at the side of a roadway,~~ UNLESS OTHERWISE POSTED, STAND OR PARK A MOTOR VEHICLE OR TRAILER, OR ANY PART THEREOF, WITHIN THIRTY (30) FEET OF ANY POINT FORMED BY THE INTERSECTION OF THE CURB LINES EXTENDING FROM ANY CORNER OF THE INTERSECTION WHICH IS NOT CONSTRUCTED AS A “BUMP OUT.” FOR THE PURPOSES OF THIS SUBSECTION, “CURB LINE” IS DEFINED AS THE LINE COINCIDENT WITH THE FACE OF THE STREET CURB ADJACENT TO THE ROADWAY. NO MOTOR VEHICLE, RECREATIONAL VEHICLE OR TRAILER MAY BE STOPPED OR PARKED ALONG OR ADJACENT TO THE CURVED PORTION OF A “BUMP OUT.”

4. In front of or within five feet of a public or private driveway, ~~and~~ AN alley, OR A RAMP TO PROVIDE ACCESS FOR PERSONS WITH PHYSICAL DISABILITIES. EXCEPTION: DRIVER'S PERSONAL PRIVATE DRIVEWAY.

5. (This paragraph remains unchanged.)

6. (This paragraph remains unchanged.)

C. Park a vehicle, whether occupied or not:

1. ~~Within twenty (20) feet of the nearest rail of a railroad crossing.~~

2.1. At any place where official signs prohibit parking.

Section 2. That Section 10.52.190, Parking prohibited at all times, Section 10.52.200, Parking prohibited during certain hours, Section 10.52.210, Stopping, standing or parking prohibited during certain hours, and Section 10.52.230, Parking signs and/or curb painting required, of Chapter 10.52, Stopping, Standing and Parking Generally, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming, are hereby repealed:

Section 10.52.190 Parking prohibited at all times.

Repealed in its entirety, including Schedule D.

Section 10.52.200 Parking prohibited during certain hours.

Repealed in its entirety, including Schedule E.

Section 10.52.210 Stopping, standing or parking prohibited during certain hours.

Repealed in its entirety, including Schedule F.

Section 10.52.230 Parking signs and/or curb painting required.

Repealed in its entirety.

Section 3. That Section 10.52.190, Designating and posting of prohibited parking, of Chapter 10.52, Stopping, Standing and Parking Generally, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming, is hereby created as follows:

Section 10.52.190 DESIGNATING AND POSTING OF PROHIBITED PARKING.

IN ADDITION TO THE GENERAL PROHIBITIONS STATED IN THIS CHAPTER, THE CITY ENGINEER, OR HIS OR HER DESIGNEE, IS HEREBY AUTHORIZED, IN ACCORDANCE WITH APPLICABLE STATE AND FEDERAL STATUTES, RULES AND

REGULATIONS, TO DESIGNATE AND POST PROHIBITIONS, LIMITATIONS, REGULATIONS AND EXCEPTIONS THERETO, REGARDING THE PARKING OF VEHICLES, RECREATIONAL VEHICLES, AND TRAILERS WITHIN THE CITY LIMITS OF CHEYENNE.

Section 4. That Section 10.52.200, Recreational vehicle, Trailer–Defined; Parking permitted in certain places, of Chapter 10.52, Stopping, Standing and Parking Generally, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming, is hereby created as follows:

Section 10.52.200 RECREATIONAL VEHICLE, TRAILER–DEFINED; PARKING PERMITTED IN CERTAIN PLACES.

A. FOR PURPOSES OF THIS CHAPTER, “RECREATIONAL VEHICLE” MEANS ANY VEHICULAR-TYPE UNIT THAT IS PRIMARILY DESIGNED AS A TEMPORARY LIVING QUARTERS FOR RECREATIONAL, CAMPING, OR SEASONAL USE; HAS ITS OWN MOTIVE POWER OR IS MOUNTED ON OR TOWED BY ANOTHER VEHICLE; AND IS REGULATED BY THE NATIONAL HIGHWAY TRAFFIC SAFETY ADMINISTRATION AS A VEHICLE OR VEHICLE EQUIPMENT.

B. FOR THE PURPOSES OF THIS CHAPTER, “TRAILER” MEANS ANY OF THE FOLLOWING:

1. ANY “SEMI-TRAILER” WHICH IS DESIGNED FOR CARRYING PERSONS OR PROPERTY AND FOR BEING DRAWN BY A MOTOR VEHICLE AND SO CONSTRUCTED THAT SOME PART OF ITS WEIGHT OR THAT OF ITS LOAD RESTS UPON OR IS CARRIED BY ANOTHER VEHICLE. “SEMI-TRAILER” SHALL INCLUDE ANY CAMPER DESIGNED TO BE CARRIED IN OR UPON A TRUCK OR OTHER MOTOR VEHICLE, AND ANY HOUSE TRAILER, AS DEFINED BY WYO. STAT. ANN. § 31-5-102(a)(xv), IF SO DESIGNED OR CONSTRUCTED THAT SOME PART OF ITS WEIGHT OR THAT OF ITS LOAD RESTS UPON OR IS CARRIED BY ANOTHER VEHICLE.

2. ANY “TRAILER” WHICH IS DESIGNED FOR CARRYING PERSONS OR PROPERTY AND FOR BEING DRAWN BY A MOTOR VEHICLE AND SO CONSTRUCTED THAT NO PART OF ITS WEIGHT OR THAT OF ITS LOAD RESTS UPON OR IS CARRIED BY ANOTHER VEHICLE. “TRAILER” SHALL INCLUDE ANY CAMP TRAILER, TENT TRAILER, OR HOUSE TRAILER, AS DEFINED BY WYO. STAT. ANN. § 31-5-102(a)(xv), IF SO DESIGNED OR CONSTRUCTED THAT NO PART OF ITS WEIGHT OR THAT OF ITS LOAD RESTS UPON OR IS CARRIED BY ANOTHER VEHICLE.

C. IN ADDITION TO THE LIMITATIONS SPECIFIED IN THIS CHAPTER, RECREATIONAL VEHICLES AND TRAILERS MAY BE PARKED IN THE STREET ONLY IF THE AREA IN WHICH ANY SUCH VEHICLE IS PARKED IS IMMEDIATELY AND ENTIRELY ADJACENT TO REAL PROPERTY WHICH IS OWNED BY OR OCCUPIED BY THE OWNER OF THE RECREATIONAL VEHICLE OR TRAILER.

Section 5. That this ordinance shall be in full force and effect upon approval and publication, but no sooner than February 1, 2013.

FIRST READING: August 27, 2012

SECOND READING: September 10, 2012

THIRD AND FINAL READING: September 24, 2012

(SEAL)

Richard L. Kaysen, Mayor

Attest:

Carol Intlekofer, City Clerk